

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 22, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne (arriving at 6:04 p.m.), Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Ms. Broyles. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Following explanation of action taken to change the order of the agenda at the recent Public Services Committee meeting, Mr. Allen moved to suspend the rules to change the order of the agenda to bring forward agenda item #20 (Resolution determining conditions for annexation exist for Swan Ranch II) for action prior to agenda item #9 (Ordinance regarding annexation for Swan Ranch II), seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Allen, and pursuant to support received by Ms. Williams and Mr. Cook, agenda item #24 was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 8, 2013. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and radio station KYOY-FM respectively) and vacated Council Chambers. (City Clerk note: Dr. Rinne joined the meeting in progress) Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from HI Heavy Industrial to CB Community Business for Lot 3, Block 1, Cheyenne Business Parkway, Cheyenne, Wyoming (located west of and adjacent to Progress Circle, north of Campstool Road). Cortney Thompson, representative of Green House Data Center, spoke in support of the zone change, advising they

are pursuing the change in order to expand their facility and service operations and providing information on growth of the company. He stated the expansion affiliated with the zone change request involves two vacant lots adjacent to the current facility site and that the company is purchasing the lots from Cheyenne LEADS. He explained communication efforts by Green House Data with Van Diest Supply Company, a neighboring company, who has indicated its objection to the zone change. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body present. (#3987)

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as high priority quick fixes from the 2013 annual review. Brad Harrington, Joe Hardy and Albert Simpson commented in opposition to the UDC generally citing concerns such as regulatory control and authority affecting private property rights; certain development aspects and design level standards contained in the UDC, and that the UDC is resulting in increased costs to developers and property owners. Request was made to repeal the UDC and reinstate prior codes. M. Lee Hasenauer, Laramie County Commissioner, referenced a petition he had submitted at a recent Public Services Committee meeting, noting it had been signed by individuals opposed to the UDC, and submitted additional petition pages (on file with City Clerk's office); commented in opposition to the UDC generally, and requested the UDC be repealed. Mr. Allen moved to approve on third and final reading, seconded by Mr. Brown. Upon inquiry, it was verified the correct ordinance version before the governing body was one that was dated July 16, 2013 (City Clerk note: date of City Attorney stamp) reflecting that Section 10 wording contained in a previous ordinance version had been removed due to an approved amendment at the July 8, 2013 Council meeting. Comments followed in support of the quick fix changes contained in the proposed ordinance and that additional changes should be forthcoming. Motion carried. Voting "yes" -- Mr. Allen, Mr. Brown, Mr. Cook, Dr. Rinne, Mr. Shanor and Mayor Kaysen. Voting "no" -- Mr. Luna, Mr. Valdez and Ms. Williams. (#3988)

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive). Mr. Allen moved to adopt, seconded by Mr. Cook. Mr. Allen, seconded by Mr. Cook, moved to amend with the following recommendation: In order to meet the required statutory criteria for annexation including findings of the annexation being for the protection of health, safety, and welfare, staff recommends that the annexation be conditioned on dedication of land for a future fire station. That the governing body explore options to fund constructing, equipping, and staffing the fire station, and direct staff to procure a study of the costs of new development for the purpose of making policy decisions in the future about paying for capital investments necessitated by development (i.e., road improvements, fire stations, etc.) and with due consideration and credit given to the applicant for such dedication based in whole or in part of the fair market value of said land. Comments followed that additional information is being worked on through discussions between the administration and the developer; that purpose of the amendment may not be needed due to the topics involved in discussions, and that the governing

body should “stay on track” with the purpose of the resolution regarding statutory criteria. Motion to amend failed. Voting “no” -- all members of the governing body present. Mr. Allen moved to postpone to August 12, 2013, seconded by Mr. Brown. M. Lee Hasenauer, Laramie County Commissioner, questioned whether the “201” boundary had ever been set aside so land, such as the remote location of this parcel, wouldn’t be subject to annexation requirements with Mayor Kaysen responding that he was not aware of any situation involving that scenario. Discussion included support of the postponement, construction of a proposed new fire station on the property to be annexed and other developments and fire station locations. During comments involving a potential new fire station and other station sites in the community, Mr. Brown raised a point of order that discussion should remain germane to the motion on the floor with Mayor Kaysen ruling the point was well taken and advising there will be an opportunity to address questions on the purpose of a fire station in the area at a later time but that discussion should pertain to the motion to postpone. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive). Mr. Allen moved to approve on second reading, seconded by Mr. Brown. Mr. Allen, seconded by Ms. Williams, moved to amend with the following recommendation: In order to meet the required statutory criteria for annexation including findings of the annexation being for the protection of health, safety, and welfare, staff recommends that the annexation be conditioned on dedication of land for a future fire station. That the governing body explore options to fund constructing, equipping, and staffing the fire station, and direct staff to procure a study of the costs of new development for the purpose of making policy decisions in the future about paying for capital investments necessitated by development (i.e., road improvements, fire stations, etc.) and with due consideration and credit given to the applicant for such dedication based in whole or in part of the fair market value of said land. Comments followed in non-support of the amendment for the reasons presented during discussion on the previous agenda item. Motion to amend failed. Voting “no” -- all members of the governing body present. Upon inquiry, Jim Flesher, Planning Department, expressed his opinion that he did not see any value in postponing the item at this time as it is still on second reading. Following further comment, main motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, 2.2.2, Planned Development - Regulating Plan or Development Master Plan, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LI, Light Industrial, and PUD, Planned Unit Development (County) to LI, Light Industrial, and PUD, Planned Unit Development (City) for Lot 1, Block 2, Swan Ranch Rail Park, First Filing, Lots 1 through 4, and 6, Block 1, Swan Ranch Rail Park, Fourth Filing, all of Swan Ranch Rail Park, Fifth Filing, all of Swan Ranch Rail Park, Seventh Filing, a parcel of land situated in a portion of the north half of Section 27, T.13N., R.67W., 6th P.M., and portions of Sections 14, 15, 22, and 23, T.13N., R.67W., 6th P.M. to be known as Swan Ranch Rail Park, Eighth Filing, Cheyenne, Wyoming (located east of and

adjacent to Clear Creek Parkway and north of and adjacent to Tundra Drive). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Comment was made that the ordinance was on second reading with one more reading required. Upon inquiry regarding landscaping requirements included in the staff report, Jim Flesher, Planning Department, provided information on landscaping requirements in a PUD zone and an alternative compliance option provided to the developer. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-2 Medium Density Residential – Developing to CB Community Business for Lot 4, Block 1, Kornegay Homesites, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Kornegay Court, between Yellowstone Road and Sunset Drive). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Vacating a portion of Evans Avenue adjacent to Lot 10, Block 12, Pershing Heights Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 4th and Evans Avenues). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. In response to comment regarding street right-of-way width, Brett Walker, Planning/Development Office, advised that Evans Avenue had been rebuilt in recent years and the amount of right-of-way needed is in place. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Vacating portions of Van Buren Avenue and Cheyenne Street adjacent to Tracts 145, 146, 147 and 148, Sunnyside Addition, 5th Filing, Cheyenne, Wyoming (located north of E. Pershing Boulevard and east of Polk Avenue). Brad Emmons, AVI, agent for the applicant, advised the proposed vacation was part of a preliminary plat process and the applicant wishes to move forward with the process. Mr. Allen reported there was no recommendation on the item from Public Services Committee. Mr. Allen moved to approve on second reading, seconded by Dr. Rinne. It was noted that discussion at the Public Services Committee meeting centered around who should pay for any future costs if the property owner wanted to de-annex a portion of the area. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Williams voting “no”.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from AR Agricultural Residential to LI Light Industrial for Lots 1-3, Block 1, Polk Addition, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Polk Avenue). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. It was noted that County Planning staff present at the Public Services Committee meeting had expressed concerns with the proposed change, and that the concerns were discussed. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Amending various sections of Title 8, Health and Safety, Chapter 8.44, Solid Waste, of the Cheyenne City Code, pertaining to the general provisions of the Solid Waste Code -- referred to Finance Committee (sponsors -- Mr. Allen, Mr. Brown, Mr. Shanor).

[CA] RESOLUTION - Dissolving the Laramie County Early Childhood Education and Development Joint Powers Board. Motion (per Consent Agenda) carried. (#5504)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to enter into a Settlement Agreement and Re-Development Agreement with 19th and Converse, LLC, a Colorado Limited Liability Company, to settle all remaining issues relating to the acquisition of right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19th Street intersections, and approving, as a condition of settlement, the trade of certain real property owned by the City to 19th and Converse, LLC, described as Lots 30 and 31, Block One, Eastridge Addition, having an assessed value of \$81,590.00, in exchange for certain real property owned by 19th and Converse, LLC, consisting of approximately 9,504 square feet of land, being a portion of Lots 1 and 2, Ruth Addition, having an appraised value between \$190,080.00 and \$237,600.00, both properties being located at the intersection of Converse Avenue and Pershing Boulevard, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5505)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5506)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5507)

RESOLUTION - Creating the Employee Investment Study Implementation Team to consider alternative means of implementing the Employee Investment Study conducted by the Mercer Group, LLC. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was advised the substitute adds City Treasurer Lois Huff to the team as she was inadvertently omitted on the initial resolution. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body present. Mr. Brown moved to amend by adding an additional fifth "Whereas" clause to read as follows: "Whereas, a final plan must be submitted to the governing body for approval no later than January 1, 2014, and implementation process must begin within the FY 2015 budget," seconded by Mr. Allen. It was noted the amendment would provide for a specific time line in which the team would present the governing body with alternatives and options for funding. Concern was expressed that since the governing body had not yet received the final salary study from the consultant that the amendment would commit implementation of the recommendations prior to receipt and review. Discussion included support for a time frame in which the team would submit its recommendations; that implementation may need to be accomplished in stages, and that the governing body will approve the final plan. Mayor Kaysen provided an update on the consultant's progress with the salary pay range portion of the study, noting the employee 2.25% COLA (cost of living adjustment) approved with the FY2014 budget has been incorporated into the ranges; reviewed components of the overall study, which includes revised job descriptions and staffing analysis in addition to a proposed compensation pay plan, and staff participation in the study process. He noted a work session with the consultant and City Council is planned for August 7th and, upon request, advised when information is received from the consultant it will be shared with department heads first and then shared with City Council members prior to the work session. Motion to amend carried. Voting "yes" -- all members of

the governing body present with the exception of Dr. Rinne voting “no”. Main motion as twice amended carried. Voting “yes” -- all members of the governing body present. (#5508)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads). Mr. Allen moved to adopt, seconded by Mr. Shanor. Mr. Allen moved to postpone to August 12, 2013 to allow for review of soil testing results, seconded by Mr. Shanor. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Polk Addition, a replat of Tracts 145-148, Sunnyside Addition, 5th Filing, a replat of a portion of vacated Van Buren Avenue, a replat of a portion of vacated Cheyenne Street, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Polk Avenue). Albert Simpson commented in support of the development action and forming a SID (Special Improvement District) for the area, noting a petition requesting a SID had previously been submitted, and reviewed the necessity for access to the sewer line for this and other related areas. Mr. Allen moved to adopt, seconded by Mr. Shanor. Mr. Allen moved to postpone to August 12, 2013, seconded by Mr. Shanor. Donna Ferguson, Planning and Development Office, advised the final plat is dependent upon the pending road vacation approval for Polk Addition and postponement of the item will allow both agenda items to be completed at the same time. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

RESOLUTION - Acknowledging receipt of the Strategic Downtown Action Plan ‘Historic Placemaking: Strategies for Invigorating Downtown Cheyenne’ as a working document and tool for Downtown Cheyenne. Pete Laybourn provided a handout (on file with City Clerk’s office) entitled Deploy Bucket Brigades for CFD; discussed DDA (Downtown Development Authority) Strategy #1 included in the action plan relative to clean-up of downtown areas in preparation for Cheyenne Frontier Days activities; spoke in favor of receipt of the action plan and the need to measure plan elements through its implementation; commented on private downtown improvement efforts, and suggested sidewalk café business licensing requirements be reviewed. Mr. Allen moved to adopt, seconded by Mr. Shanor. Comment was made in support of downtown sidewalk cafés, and review of the current licensing ordinance. Motion carried. Voting “yes” -- all members of the governing body present. (#5509)

[CA] RESOLUTION - Authorizing the Submittal of an Application to the Wyoming Water Development Commission for grant funding for engineering services and other administrative costs for Phase III of the Southern Water Transmission Main Project in the amount of \$1,206,000 and authorizing the Mayor, City Clerk and Director of the Board of Public Utilities to execute the application and all related documents -- referred to Finance Committee (sponsors -- Mr. Brown, Mr. Valdez).

[CA] RESOLUTION - Authorizing the City staff to conduct a study of the solid waste collection and disposal system, conduct a rate study and review the feasibility of converting the solid waste system to an enterprise fund -- referred to Finance Committee (sponsors -- Mr. Allen, Mr. Brown, Ms. Broyles).

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with Longhaul Enterprises, LLC, Lot 3, Block 1, Swan Ranch Rail Park, 4th Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Valdez).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Swan Ranch Rail Park, Eighth Filing, a Replat of Swan Ranch Rail Park, Sixth Filing, and portions of Sections 14, 15, 22, 23 and 27, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located northwest of the intersection of Tundra and Clear Creek Parkway) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Approving the Title VI Program for the Cheyenne Transit Program, Cheyenne, Wyoming -- referred to Public Services Committee (sponsor -- Ms. Williams).

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for the 2013- 2014 Concert Season. Motion (per Consent Agenda) carried (revenue to City - \$19,200.00). (#6033)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for Youth Education Concerts. Motion (per Consent Agenda) carried (amount not to exceed \$6,500.00). (#6034)

[CA] Juvenile Housing Agreement between Laramie County, Wyoming, and the City of Cheyenne. Motion (per Consent Agenda) carried. (#6035)

[CA] Memorandum of Understanding between the Town of Hulett, Wyoming and the City of Cheyenne, Wyoming for Law Enforcement Extraterritorial Assistance. Motion (per Consent Agenda) carried. (#6036)

[CA] Contract between the Wyoming Department of Transportation and the City of Cheyenne, Public Works Department, to provide Transit Division with funding to purchase two replacement buses (Wyoming Department of Transportation funding) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Public Works Department, and United Way of Laramie County, for Technical Assistance to Human Services Community Programs -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, Cheyenne, Wyoming for Construction Manager at Risk Services for the renovation and expansion of the Municipal Pool (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne, Engineering Department, and Zayo Group, LLC, to install a fiber optics line crossing a portion of the Belvoir Ranch (revenue to City) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5921 between the City of Cheyenne and Reiman Corporation to add additional work items to the East Pershing Boulevard Reconstruction

Project Phase IV (2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funding). Motion (per Consent Agenda) carried (amount not to exceed \$82,694.45). (#5921)

[CA] Contract Modification No. 1 to Contract No. 5928 between the City of Cheyenne, Parks and Recreation Department, and S & S Builders, LLC, Cheyenne, Wyoming, for additional work to complete Pioneer Park Parking Lot Improvements (Parks Facilities funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-16-13 for Fiscal Year 2013 Concrete for Street and Alley Overlay Part "B" project between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, Cheyenne, Wyoming (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$749,109.64). (#6037)

[CA] Consideration of Bid #M-19-13 for 2013 City of Cheyenne Pavement Markings project between the City of Cheyenne, Engineering Department, and Kolbe Striping, Castle Rock, Colorado (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$115,971.00). (#6038)

[CA] Consideration of Bid #R-2-14 to purchase two replacement vehicles with two $\frac{3}{4}$ ton trucks and two new $\frac{3}{4}$ ton trucks for the Parks and Recreation Department (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-18-13 for annual contracts for snow removal and other services (2011-2014 1% Sales Tax) -- referred to Finance Committee.

Transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, 112 West 17th Street, Cheyenne, Wyoming). Major Dorr, Alberta LeGrande, Ed Clark and Jan Nelson Schroll spoke in opposition to the license transfer citing availability of liquor outlets currently in the area/community; and expressing concerns involving potential expansion of the dimensions of the proposed package store in the future; proximity of the proposed site to schools; minors in possession of alcohol; Safeway corporate holdings not having a direct relationship with Wyoming and profits not remaining at the local level, and setting a precedent in awarding a license that would be affiliated with a grocery store environment. John Sundahl, attorney representing the applicant, commented on Safeway's long-standing community support and its financial investment in re-developing the site, which will promote economic development for the Cole Shopping Center area. He noted Safeway's contributions to local employment, the community's tax base and organizational and program contributions and sponsorships, and pointed out that no objection was raised by the neighborhood during the public hearing nor the previous Board of Adjustment (zoning approval) process. He advised Safeway operates as competitively as other stores providing similar services and that the corporation wishes to provide a convenient shopping experience for its customers. He explained the proposed 2,000 sq. ft. package store will have an outside entrance, noting if there was any request to change dispensing room dimensions in the future it would require governing body approval, and urged support for approval of the application. Pat Crank, attorney representing Maury Brown, spoke in opposition

to the transfer stating approval would be a significant policy shift for the community and City Council in awarding the license to a “big box” store. He discussed historical importance of local licensees and noted their commitments to and investments in the community; unfair business pricing advantage of a big box store over “mom and pop” operations, citing provisions of Wyo. Stat. 40-4-107 involving unlawful competition, and potential for future size expansion or change in entry access to the proposed package store. He encouraged support that liquor licenses be held by local business persons and urged that the application be denied. Jim Weaver, #1 Commercial Properties, CCM (Certified Commercial Investment Manager), stated he had been retained by Safeway to assist with re-development efforts for the Cole Shopping Center by finding businesses to lease property on the site, and spoke in support of awarding the license to Safeway. He advised that elements involving site analysis and criteria are utilized by companies in determining store locations for various kinds of developments, whether it was for a grocery store, restaurant or a big box business that moves into a community. He discussed the current 36 retail-type liquor licenses currently approved by City Council; differing operational aspects involved and average dispensing room size of other licensees; Safeway’s convenience store intent for its customers; Safeway’s financial philosophy affiliated with each of its store departments and the corporation’s estimated \$30,000,000 to be expended in improvements benefitting the City, and Safeway’s willingness to be restricted to the 2,000 sq. ft. dispensing room. During his comments, Mr. Weaver referred to two maps he displayed depicting the location of other retail licenses, including two county licensees, and those representing operations (i.e. package store) the same as the type being requested by Safeway. Kevin Georges commented on a recent incident involving a current retail licensee that, due to violations, resulted in City Council taking action to require closure of the business for a certain time frame, and questioned if the license transfer was approved and at some point there was a violation of law and Council wished to penalize the licensee in a similar manner, would the entire grocery store be shut down. Upon request, Dan White, City Attorney, advised he and Carol Intlekofer, City Clerk, had discussed this topic and, following review of statutes and City Code, it was their conclusion that, in the event Safeway were to violate any liquor state statutes or provisions of City Code and the Council decided to impose any closure action, only the dispensing room would be shut down (i.e. package store) not the entire grocery store. Mr. White clarified the entire building of the licensee involved in the incident resulting in a temporary business closure, as referenced by Mr. Georges, was designated as the dispensing room and, therefore, that was why both the package store and bar areas were involved in the temporary closure. Mr. Georges spoke in opposition to the transfer and commented on his belief that approving the license transfer would not help with economic development of the shopping center site, noting currently vacant buildings and closed businesses on the property. He discussed concerns with losing local control, big box stores holding a liquor license, and setting a precedence. Eddie Georges, D.T.’s liquor licensee, spoke in opposition to the transfer, commenting on loss leader pricing strategies; compliance responsibility involving sales to minors and support for the principles of business competition generally, and advocated having liquor licenses remain with “locals”. Christine Fitzgerald, area resident within the vicinity of the proposed license site, spoke in support of the transfer, stating the package store and new grocery store will benefit revitalization of the area. Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 9:00 p.m. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve, seconded by Mr. Allen. Mr. Brown stated, pursuant to questions he had been personally asked recently, that he did not have a business relationship with the applicant and, therefore, he did not have a conflict of interest. Discussion topics included: Aspects of competition; local control; state law restricting the

availability of these types of liquor licenses; license being an existing license and not a new license available through the City; Safeway's proven community track record; whether Safeway would continue to build its new store if the application was not approved; conditioning that the 2,000 sq. ft. size of the dispensing room be a future license requirement; allowing the current licensee to have the opportunity of selling its property interest in the license to a willing buyer; fairness concerns; retail liquor licenses being a valuable asset of the holder due to restrictions placed on the limited number that can be issued per state statutes; best use of these types of liquor licenses in the City; past utilization of the license when it was operated as the former Mayflower establishment vs proposed license use as a package store; best use of the license and whether approval of the transfer will assist with economic development of the area, and support for the existing license holder to operate under the license. During discussion comments were made in support as well as non-support of the license transfer and, upon inquiry, Mr. Sundahl stated Safeway has made a financial commitment to the property as well as an investment in development planning, advising that Safeway has purchased the site, and plans to stay in Cheyenne. Motion to approve failed. Voting "yes" -- Mr. Brown and Mr. Shanor. Voting "no" -- Mr. Allen, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Valdez, Ms. Williams and Mayor Kaysen.

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement -- referred to Finance Committee.

Announcement was made of the Re-appointment of Jane M. France to the Community Action of Laramie County, Inc. Board of Directors to be confirmed August 12, 2013.

Under other business, Mayor Kaysen advised there was another item for the agenda that involved timeliness and requested the City Clerk read the entitlement of the item. Carol Intlekofer, City Clerk, read the entitlement as follows: "Contract between the City of Cheyenne, Police Department, and Wyoming Division of Criminal Investigation for task force officers to serve as members of a joint drug enforcement team." Mayor Kaysen referred the item to Finance Committee.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:18 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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